
Statement of Reasons & Decision Notice

Site Visit made on 12 August 2026

Decision by Tom Gilbert-Wooldridge BA (Hons) MTP MRTPI IHBC

A person appointed by the Secretary of State

Decision date: 25 August 2026

Application Reference: CROWN/2026/0000003

Site address: Grenfell Tower, Grenfell Road, North Kensington, London

- The Crown Development Application was made under Section 293D of the Town and Country Planning Act 1990 by the Ministry of Housing, Communities and Local Government.
 - The site is located within the local planning authority area of the Royal Borough of Kensington and Chelsea.
 - The application was dated 30 April 2026 and, following validation, was accepted for consideration on 27 May 2026.
 - The development proposed is described as *'The works to take down Grenfell Tower'*.
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Summary of Decision

Planning permission is **GRANTED subject to the condition** set out in the Decision Notice, and for the reasons set out in this Statement of Reasons.

Statement of Reasons

Procedural matters

Crown Development Application Route

1. The application was made under section 293D of the Town and Country Planning Act 1990 as amended (TCPA). This allows for applications to be made directly to the Planning Inspectorate where an appropriate authority applies for planning permission for development that is considered by the Secretary of State to be of 'national importance'.
2. The Written Ministerial Statement made on 13 February 2025 by the Minister of State for Housing and Planning set out that:

'The Secretary of State will in general only consider a development to be of national importance if, in her opinion, the development would:

- *involve the interests of national security or of foreign Governments;*
- *contribute towards the provision of national public services or infrastructure, such as new prisons, defence, or border infrastructure;*
- *support a response to international, national, or regional civil emergencies; or*
- *otherwise have significant economic, social, or environmental effects and strong public interest at a regional or national level.¹*

3. On 27 May 2026, the Ministry of Housing, Communities and Local Government (MHCLG) wrote to parties, including the local Member of Parliament, informing them that the Secretary of State (SoS) considers the development is of national importance as it has strong social effects and strong interest at regional and national levels.
4. On 9 July 2026, I was appointed under section 293I of the TCPA. This gives the appointed decision-maker the same powers as the SoS under section 293H of the TCPA. This includes that the provisions of section 73A of the TCPA (planning permission sought for development already carried out) apply as though the application were made to the local planning authority.
5. The applicant commenced development to take down Grenfell Tower in September 2025, utilising powers under Schedule 2, Part 19, Class Q of the Town and Country Planning (General Permitted Development) (England) Order 2015 (development by the Crown relating to an emergency). These permitted development rights are only valid for a period of 12 months from the date on which the development began and so will expire on 23 September 2026.
6. While the development has progressed considerably to date, it will not be completed within 12 months. Therefore, this application is necessary to ensure that the development has the benefit of planning permission.

¹ Crown Development – Statement made on 13 February 2025 <https://questions-statements.parliament.uk/written-statements/detail/2025-02-13/hcws454>

7. The Council of the Royal Borough of Kensington and Chelsea (the Council) as the local planning authority takes no role in making decisions regarding the Grenfell Tower site. Nevertheless, the Council has assisted in providing relevant documents and technical comments necessary for me to reach a decision on this development.
8. In accordance with Article 43 of the Town and Country Planning (Crown Development Applications) (Procedure and Written Representations) Order 2025 (CDAO), the SoS has determined that the procedure to be followed for this application is the written representations process.
9. An updated version of the National Planning Policy Framework (NPPF) was published on 17 August 2026. The changes to relevant sections of the NPPF were not substantive for this particular case, so it has not been necessary to conduct additional consultation.

Environmental Impact Assessment (EIA)

10. The application was initially screened by MHCLG's Planning Casework Unit who confirmed on 25 September 2025 that it did not comprise EIA development within the meaning of the Town and Country Planning (Environmental Impact Assessment) Regulations 2017 (as amended). The application was screened again by the Planning Inspectorate who concluded on 5 May 2026 that it was not EIA development. Consequently, an EIA was not required. I am satisfied that the requirements of the Regulations have been complied with

Site Inspections

11. I carried out a formal site inspection on Wednesday 12 August 2026 and inspected the surrounding area on the same day. I also visited the area on 17 February and 27 June 2026 to familiarise myself with the general location.

Consultation and Representations received

12. Consultation was undertaken between 15 June and 6 July 2026. This allowed a period of around 21 days for any interested person to review the application and make representations. The consultation included writing to statutory consultees and posting four site notices within the vicinity of the site.
13. Representations were submitted by various statutory consultees, namely the Council, the Mayor of London, Transport for London Infrastructure Protection, the Environment Agency, and the Defence Infrastructure Organisation. The full details of these can be found on the application website². No representations were received from any other interested person.
14. I have taken account of all written representations in reaching my decision.

² [Written representations – Find a Crown development application](#)

Planning History and Policy Context

Planning history

15. The site's relevant planning history is provided at Section 2.3 of the Planning Statement³. It includes the refurbishment of the tower, granted permission in January 2014, and the discharge of various conditions relating to that permission.

Planning policy context

Development Plan

16. The development plan for this location comprises the Council's Local Plan 2024⁴ and the London Plan 2021⁵. Specific policies are noted in the table below, although I have had regard to the development plan as a whole. To my knowledge, there are no emerging development plan documents of relevance to this application.

Topic	Local Plan 2024	London Plan 2021
Design	CD1: Context and Character CD15: Views	D4: Delivering Good Design
Heritage	CD3: Heritage Assets CD4: Heritage Assets – Conservation Areas CD5: Heritage Assets – Listed Buildings	HC1: Heritage Conservation and Growth
Noise and Vibration	GB7: Construction Management GB8: Noise and Vibration	D14: Noise
Green and Blue Infrastructure	GB11: Flood Risk GB12: Sustainable Drainage GB14: Green and Blue Infrastructure GB16: Trees GB17: Waste Management	G1: Green Infrastructure G6: Biodiversity and Access to Nature G7: Trees and Woodland SI12: Flood Risk Management SI13: Sustainable Drainage
Air Quality	GB6: Air Quality	SI1: Improving Air Quality
Transport	TR5: Land Use and Transport TR6: Active Travel GB7: Construction Management	T4: Assessing and Mitigating Transport Impacts T7: Delivery, Servicing and Construction

³ [CROWN/2026/0000003 - Documents – Find a Crown development application](#)

⁴ [Local Plan | Royal Borough of Kensington and Chelsea](#)

⁵ [The London Plan 2021 | London City Hall](#)

Area-based policies	PLV3: Lancaster West Estate and Notting Dale	
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Supplementary Planning Documents and Guidance

17. The main relevant supplementary planning documents (SPD) adopted by the Council⁶ are the Air Quality SPD (2009), the Greening SPD (2021), the Noise SPD (2009), the Transport and Streets SPD (2016) and the Trees and Development SPD (2023). Additionally, there is relevant Mayoral Supplementary Planning Guidance (SPG) on the Control of Dust and Emissions during Construction and Demolition (2014), and relevant London Plan Guidance (LPG) on Air Quality Neutral (2023)⁷.

NPPF and Planning Practice Guidance

18. The most relevant chapters from the August 2026 version of the NPPF are set out below, although I have had regard to the whole document⁸. The national Planning Practice Guidance⁹ sets out guidance relating to Crown Development and Urgent Crown Development, Air Quality, Biodiversity Net Gain, Noise, and Travel Plans, Transport Assessments and Statements.

NPPF Chapter	Policy Matter
3	Decision-making
14	Achieving well-designed places
15	Promoting sustainable transport
17	Pollution, public protection and security
18	Managing flood risk and coastal change
19	Conserving and enhancing the natural environment
20	Conserving and enhancing the historic environment

Main Issues

19. Having regard to the application and the consultation responses, together with my site visit, the main issues for this application are the effect of the development on:
- the character and appearance of the area;
 - heritage assets;
 - trees and biodiversity;
 - the local highway network;

⁶ [Supplementary planning documents and guidance | Royal Borough of Kensington and Chelsea](#)

⁷ [London Plan Guidance | London City Hall](#)

⁸ [National Planning Policy Framework - GOV.UK](#)

⁹ [Planning practice guidance - GOV.UK](#)

- v. air quality and noise/vibration; and
- vi. flooding and drainage.

Reasons

Principle of Development

- 20. The 2017 fire at Grenfell Tower caused significant structural damage to the building. While efforts were made after the fire to prop and stabilise the tower, its structural integrity has declined. Structural engineering advice concluded that the tower should be carefully and sensitively taken down in the interests of public safety. The development commenced in September 2025 under permitted development rights and the tower is gradually being taken down to ground level from its original height of 24 storeys.
- 21. Local Plan Policy PLV3 seeks positive change to the area around Grenfell Tower and the Lancaster West Estate in partnership with the local community and residents. Paragraph 2.18 of the Local Plan notes that the Grenfell Tower Memorial Commission has been set up to ensure that the bereaved, survivors, and North Kensington residents lead decision-making on the long-term future of the Grenfell Tower site.
- 22. It is intended that a separate planning application for a memorial will be submitted in due course. The application before me focuses solely on the taking down of the tower. Nevertheless, the application forms an important part of the changes to the wider area and so the principle of the development is acceptable.

Character and Appearance

- 23. The application site comprises Grenfell Tower and the land adjacent to the building that is being used as the compound for the works to take down the tower. To the south are residential properties that make up the Lancaster West Estate. To the east is Kensington Leisure Centre, to the north is Kensington Aldridge Academy, and to the west is the railway viaduct of the Hammersmith & City and Circle Underground lines. The tower itself is enclosed by scaffolding and shrouding that screen the works underway.
- 24. The surrounding area contains different townscape characteristics ranging from postwar housing estates, an elevated dual carriageway known as Westway and recently redeveloped sites like the academy and leisure centre, to rows of Victorian terraces and areas of green space. Prior to the development commencing, the tower was visible from multiple locations because of its considerable height, as evidenced by the applicant's Townscape and Visual Assessment. This visibility decreased with distance and the effect of intervening buildings and structures.
- 25. Due to the ongoing works, the tower's visual presence is already diminishing and will disappear altogether above ground when the development is complete. As a result, there will be significant townscape and visual effects in the area immediately around the tower given the scale and prominence that the building once had, including from residential streets like Grenfell Road, Waynflete Square and Silchester Road, as well as from the footpath past the leisure centre and from the platforms at Latimer Road Underground Station. However, further away, the effects will reduce as the tower was less obvious in the general townscape.

26. While there would be significant townscape and visual effects, the tower is structurally unsound and its taking down is already well advanced under permitted development rights. Moreover, its removal would facilitate the delivery of a memorial on the site. Therefore, these factors outweigh the effects that the development would have on the character and appearance of the area. In reaching this conclusion, I have had regard to Local Plan Policies CD1 and CD15 and London Plan Policy D4 which, amongst other things, require development to respect existing context, character and views and use appropriate visual assessments. I have also had regard to NPPF Policy DP3 which seeks to achieve well-designed places.

Heritage Assets

27. Section 66(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990 (LBCA 1990) states that “in considering whether to grant planning permission for development which affects a listed building or its setting, the local planning authority or, as the case may be, the Secretary of State shall have special regard to the desirability of preserving the building or its setting or any features of special architectural or historic interest which it possesses”.
28. The nearest listed building is 1 and 2 Whitchurch Road (Grade II)¹⁰ to the south of the site. It is a three-storey red brick building built by the architect J F Bentley in 1863. The design echoes the Romanesque style with its use of rounded window arches and a covered stepped entrance and series of windows from the building’s corner. Its special interest and significance is greatly informed by its architectural and historic qualities as a distinctive mid-Victorian residential property. The proximity of the postwar Lancaster West Estate immediately to the north has a conspicuous effect on its setting, with Grenfell Tower forming part of that setting particularly in winter views through trees.
29. The Church of St Clement (Grade II)¹¹ is a short distance further south on Treadgold Street. The church was built in 1867 by the architect J P St Aubyn in a Gothic style and occupies a prominent position on the junction with Whitchurch Road. The church utilises yellow stock bricks with red brick detailing around several gables, arches and windows on its northern side facing towards the site. Its special interest and significance is greatly informed by its architectural and historic qualities as a picturesque mid-Victorian church. Again, the proximity of the Lancaster West Estate to the north has a noticeable effect on its setting, although Grenfell Tower is largely hidden by intervening buildings.
30. There is a cluster of six Grade II listed buildings on Freston Road to the west of the site focused on the Latimer Academy and Harrow Club. The main block dating from 1879 by E R Robson along with the adjacent school room and caretakers house¹² at the academy remain in educational use and comprise prominent yellow brick buildings with red brick detailing. Harrow Club is a large red brick building from 1887 by R N Shaw and a former church (now in community use), with a subsidiary building to the rear and a former clergy house to the side at 189 Freston Road¹³ that are of similar age and design. The special interest and significance of this cluster derives from their

¹⁰ List entry number 1225245

¹¹ List entry number 1265169

¹² List entries 1358568, 1079813 and 1191729

¹³ List entries 1079811, 1079839 and 1079812

architectural and historic qualities as later Victorian educational, religious and community buildings. Their setting includes postwar housing on the Silchester Estate, which restricts views of Grenfell Tower.

31. Local and national policies relating to the setting of conservation areas are applicable. There are six conservation areas (CA) in the surrounding area. The nearest are Avondale CA and Avondale Park Gardens CA to the south, with the former comprising Victorian terraces from between 1860 and 1895 and the latter comprising 1920s housing set around a square. The uniformity of building design and layout in both conservation areas contributes to their significance. The proximity of the Lancaster West Estate and Grenfell Tower forms a notable part of the setting of Avondale CA with clear views of the tower in locations such as the junction of Grenfell Road and Bomore Road on the edge of the CA. From Avondale Park Gardens CA, there are views of the tower above the rooftop of properties looking north and so the building forms part of the CA's setting.
32. Norland CA further to the south is a planned residential estate from the mid-19th century with grand terraces and squares that contribute to its significance. The distance and intervening buildings mean that the postwar housing to the north, including Grenfell Tower, has very little effect on the setting of this CA.
33. Ladbroke CA to the east is another planned residential development, dating from 1820 to 1870 with classical stuccoed terraces that contribute to its significance. There are views towards Grenfell Tower along streets like Ladbroke Crescent. However, the tower is not particularly prominent in such views and so makes a limited contribution to the setting of this CA.
34. Oxford Gardens CA to the north of the site is a large residential suburb built between the 1860s and the 1920s. The CA contains a variety of architectural styles and a clear grid pattern layout which contribute to its significance. There are glimpses of postwar housing to the south, but intervening buildings and structures including the raised Westway road greatly limit any contribution of the tower in terms of setting.
35. Wood Lane CA is located to the west with a focus on the BBC Studios complex as a key component of its significance. There has been considerable redevelopment within this CA particularly on the eastern edge nearest to the site. There are views of Grenfell Tower near White City Underground Station but seen within the context of many other tall buildings. Thus, the tower has very little effect on the setting of this CA.
36. The development would have an effect on the listed building at 1 and 2 Whitchurch Road in that Grenfell Tower would disappear from view. However, the rest of the Lancaster West Estate would remain and the tower's removal would only be particularly noticeable in winter months. Therefore, there would be little change to the listed building's setting and no harm would be caused to its significance or special interest. Given the tower's lack of visibility from the listed Church of St Clement, the removal would have no effect on its setting and thus no harm would occur to its significance or special interest. The same applies to the cluster of listed buildings on Freston Road.
37. The removal of the tower would affect views from Avondale CA at the junction of Grenfell Road and Bomore Road and along Treadgold Street and Sirdar Road, but much of the setting of the Lancaster West Estate would remain. From Avondale Park

Gardens CA, views of the tower would disappear, but the coherence and integrity of this CA would continue. Views of the tower from Ladbroke CA and Wood Lane CA would also disappear, but these views are mostly glimpses and limited by distance and other buildings. There would be no discernible effect on Norland CA or Oxford Gardens CA. Consequently, no harm would occur to the significance of these six conservation areas.

38. I am not aware of any non-designated heritage assets in the vicinity of the site other than those that might form part of the above CA. Since the development only removes the tower to ground level, no below ground disturbance would occur to any possible archaeological remains.
39. Concluding on this main issue, the development would cause no harm to heritage assets and there would be no conflict with Section 66(1) of the LBCA 1990. Therefore, it would accord with Local Plan Policies CD3, CD4 and CD5 and London Plan Policies HC1. Amongst other things, these policies seek to preserve or enhance the significance of heritage assets including conservation areas and listed buildings. The development would also follow NPPF Policies HE4 and HE5 which aim to secure the conservation of heritage assets and set out how effects should be assessed.

Trees and Biodiversity

40. The site contains several trees, four of which have been felled between 2021 and 2026. There are three substantive trees (all London plane), and the remainder are smaller specimens of various species. The intention is to retain all extant trees on the site. Tree protection measures are already in place and are explained in the applicant's Further Information Response dated 13 May 2026. This includes protective boarding around several trees to the west and north of the tower to prevent accidental impact or damage. These measures appear satisfactory having viewed them on site.
41. The trees have the potential to support bats and nesting birds, while the tower could also support roosting bats. The applicant's ecology assessment identified low suitability for bats and potentially suitable nesting habitat for birds. The development is proceeding under a precautionary method of working to check for bats and birds as works progress. No other protected or priority species have been identified either through the desktop study or the field surveys. No statutory or non-statutory designated sites for nature conservation or irreplaceable habitats are affected by the development either.
42. The application is subject to the mandatory biodiversity net gain (BNG) condition under Schedule 7A of the T CPA as introduced by the Environment Act 2021. This requires the delivery of at least 10% BNG from all applicable development. The site is mostly hard surfaced apart from the trees which account for 0.83 habitat units and a small area of sparsely vegetated land (ruderal/ephemeral habitat) which accounts for 0.02 habitat units. Following the development, only 0.73 habitat units will be retained, all of which relates to trees. Thus, there would be a habitat loss of 0.12 units (0.10 units for trees and 0.02 units for sparsely vegetated land). This represents a -13.90% net change. To achieve a 10% net gain from the baseline position of 0.85 units and offset the loss, an additional 0.20 units is required to be found.
43. The standard biodiversity gain condition set out in Paragraph 13 of Schedule 7A of the T CPA would apply to this development. This specifies that the development may not

commence until a biodiversity gain plan (BGP) has been submitted to the planning authority and the planning authority has approved the plan in accordance with Paragraphs 14 and 15 of Schedule 7A of the TCPA. An informative has been included to the decision notice below as required by Article 49(1)(a) of the CDAO.

44. Paragraph 12(1)(d)(i) of Schedule 7A of the TCPA clarifies that for crown development applications, “planning authority” means “where a person appointed by the SoS in accordance with Section 293I granted the planning permission, such of that person or the local planning authority as that person may determine”. Given that the Council takes no role in making decisions on Grenfell Tower, the planning authority for the purpose of the BGP would be the person appointed by the SoS.
45. The informative does not stipulate that the BGP must be submitted before the development commences. This is partly because the works have already commenced and partly because the applicant intends to submit a separate application in the coming months for a memorial on the site. They may wish to clarify their plans for BNG as part of this separate application bearing in mind the potential for on-site enhancements. Nevertheless, it remains open for the applicant to submit a BGP for approval sooner to comply with the standard biodiversity gain condition.
46. Based on the above, the development would have an acceptable effect on trees and biodiversity. Therefore, it would accord with Local Plan Policies GB14 and GB16 and London Plan Policies G6 and G7 which seek to protect and enhance biodiversity and trees. The development would also follow NPPF Policy N3, which requires development to make provision for the maintenance of existing trees, and NPPF Policy N2 which seeks to conserve or enhance biodiversity. It would also adhere to the advice in the Council’s SPD on Trees and Development which favours tree retention over removal and replacement, and the SPD on Greening which seeks ecological assessments and biodiversity net gain.

Local Highway Network

47. The works to take down the tower are being carried out in accordance with a Traffic Management and Logistics Plan (TMLP) that was subject to engagement with relevant officers from the Council. This plan controls the timing and routing of lorries to and from the site via local streets, avoiding evenings and weekends and school start and finish times. The frequency of lorry and van movements is restricted to around 10 and 17 vehicles per day respectively, with most staff commuting to site via public transport or active travel modes (walking or cycling). Traffic marshals ensure that vehicles enter and leave the site safely. Parking is mostly provided on site, with only minimal overspill of vehicles onto adjoining streets. These arrangements are expected to continue throughout the development. Compliance with the extant TMLP can be secured as part of the plans condition.
48. Consequently, the development would have an acceptable effect on the highway network and so would accord with Local Plan Policies TR5, TR6 and GB7 and London Plan Policies T4 and T7. Amongst other things, these policies promote sustainable modes of transport and seek to safeguard public access while avoiding negative effects from demolition and construction projects. The development would also adhere to NPPF Policy TR6 which seeks to avoid unacceptable impacts on highway safety or

a severe adverse impact on the transport network. Finally, it would follow the advice set out in the Council's Transport and Streets SPD which aims to reduce the impact of construction on the highway network.

Air Quality and Noise / Vibration

49. The applicant has prepared an Air Quality and Dust Assessment that establishes the site's baseline air quality and identifies sensitive receptors nearby including residential properties, the academy school, and the leisure centre. The works to take down the tower represent a high risk in terms of dust and so there are several mitigation measures in place to suppress dust levels including water mist sprays and hoarding. Monitoring and reporting of particulate matter take place regularly. Construction traffic is unlikely to exceed air quality management thresholds given the limited number of vehicle movements.
50. The applicant has also prepared a Noise and Vibration Assessment that similarly sets out the baseline noise and vibration levels and sensitive receptors. Again, the nature of the works represents a high risk in terms of noise and vibration, but this has been closely monitored on site, with measures in place to minimise effects on the surrounding area including community liaison to address any concerns.
51. The above approach to air quality and noise/vibration is expected to continue throughout the development and the mitigation measures can be secured as part of the plans condition. Therefore, I am satisfied that the development would have an acceptable effect on air quality and noise/vibration and so would accord with Local Plan Policies GB6, GB7 and GB8 and London Plan Policies D14 and SI1. Amongst other things, these policies require developments to minimise adverse impacts in terms of air quality, noise and vibration through the submission of assessments and the monitoring of effects.
52. The development would also adhere to NPPF Policy P3 which seeks to mitigate and reduce the effect of developments on noise and air quality. It would follow the advice in the Council's Air Quality, Greening, and Noise SPDs, the Mayoral SPG on the Control of Dust and Emissions during Construction and Demolition, and the Air Quality Neutral LPG which set out relevant assessment requirements.

Flooding and Drainage

53. The site is in Flood Zone 1, which has a low probability of fluvial flooding, but is at risk from surface water flooding with a 3.3% (1 in 30 year) chance of flooding annually. It is also within the North Kensington Critical Drainage Area. No site-specific flood risk assessment has been provided for this development. However, the site's existing surface water attenuation storage remains in place. The taking down of the tower would not affect this storage capacity or increase the risk of flooding elsewhere. The future drainage of the site is a matter for the memorial application in due course. Therefore, the development would have an acceptable effect on flooding and drainage and so would accord with Local Plan Policies GB11 and GB12 and London Plan Policies SI12 and SI13. Amongst other things, these policies require development to address and reduce flood risk and manage drainage. It would also adhere to NPPF Policy F7 which seeks to ensure development is safe from flooding.

Other Matters

54. The applicant's Planning Statement at section 5.6 sets out the approach to sustainable construction techniques to limit carbon effects and ensure the appropriate use of electricity and water on site. There has been, and will continue to be, a large scale removal of materials from site, but this is inevitable given the structural condition of the tower and the permitted development rights that allow for the taking down of the building. Monitoring of effects on Transport for London infrastructure is ongoing to mitigate risks to the nearby Underground lines. The development is not liable for charges under the Council's or the Mayor's Community Infrastructure Levies because no new floorspace would be created.

Conditions

55. As the development has already commenced, the only condition necessary would be one specifying the approved plans and documents for compliance purposes. No other conditions have been suggested in the responses of statutory consultees.

The Overall Planning Balance

56. I have assessed various technical matters based on the application documents and my site observations. The principle of the development, and the effect on each main issue, would be acceptable. Consequently, there would be accordance with the development plan, with no material considerations (including consideration of the NPPF) to indicate that planning permission should be refused.
57. In reaching my conclusions, I have had due regard to the Human Rights Act 1998 and consider any interference from the development with the rights under Article 8(1) or Article 1 of the First Protocol would be proportionate. I have also had due regard to the public sector equality duty set out in section 149(1) of the Equality Act 2010 and the need to eliminate discrimination, advance equality of opportunity, and foster good relations. I have not identified any conflict with this duty.

Conclusion

58. For the above reasons, and having regard to all matters raised, the proposal accords with the development plan when read as a whole. I therefore conclude that planning permission should be granted subject to the single condition as set out in the attached Decision Notice.

T Gilbert-Wooldridge

Inspector and Appointed Person under s293I TCPA



Planning Inspectorate

Decision Notice

Reference: CROWN/2026/0000003

Dated: 25 August 2026

Decision:

Planning permission is **GRANTED, subject to the condition below**, for the works to take down Grenfell Tower, in accordance with the terms of the application reference CROWN/2026/0000003, dated 30 April 2026.

Planning Condition imposed on CROWN/2026/0000003:

1. Approved plans and documents

The development shall be carried out in accordance with the following approved plans and documents:

Plan / Document Title	Author	Date	Reference
Site Location Plan		26 January 2026	100122279-AR-XX-00-DR-A-02100 Rev P01
Existing Site Plan		26 January 2026	100122279-AR-XX-00-DR-A-02102 Rev P01
Existing Ground Floor Plan		18 March 2026	100122279-AR-XX-00-DR-A-90100 Rev P03
Proposed Ground Floor Plan		26 January 2026	100122279-AR-XX-00-DR-A-90102 Rev P01
Existing First Floor Plan		18 March 2026	100122279-AR-XX-00-DR-A-90101 Rev P03
Existing Elevations (1 of 2)		18 March 2026	100122279-AR-XX-00-DR-A-90200 Rev P03
Existing Elevations (2 of 2)		18 March 2026	100122279-AR-XX-00-DR-A-90201 Rev P03
Air Quality and Dust Assessment	EEMC Limited	29 April 2026	EEMC-AQR001-201 Rev 06
Biodiversity Net Gain Baseline Report	AtkinsRealis UK Limited	23 April 2026	100122279-ATR-XX-EC-0002 Rev 1.3
Biodiversity Net Gain – The Statutory Metric 1.0.4	AtkinsRealis UK Limited	30 January 2026	100122279-ATR-XX-EC-0003 v1.0
Historic Environment Assessment	AtkinsRealis UK Limited	22 April 2026	100122279-ATR-XX-HE-0001 Rev 3.0
Noise and Vibration Assessment	EEMC Limited	29 April 2026	EEMC-PPAR001-201 Rev 05
Planning Statement	AtkinsRealis UK Limited	23 April 2026	100122279-ATR-XX-PL-0001 Rev 1.1
Preliminary Ecological Appraisal Report	AtkinsRealis UK Limited	23 April 2026	100122279-ATR-XX-EC-0001 Rev 3.0

Plan / Document Title	Author	Date	Reference
Townscape and Visual Assessment	AtkinsRealis UK Limited	23 April 2026	100122279-ATR-XX-L-0001 Rev 3.0
Traffic Management and Logistics Plan	Deconstruct	9 July 2026	IMSF-DEC-028 Rev 3
Transport Statement	AtkinsRealis UK Limited	22 April 2026	100122279-ATR-XX-TS-0001 Rev 5.0
Provision of Further Information	AtkinsRealis UK Limited	13 May 2026	100122279-ATR-XX-PL-0004

Reason: To ensure the development is implemented in accordance with the submitted drawings and documents.

****END OF CONDITIONS****

Informatives:

i. Biodiversity Net Gain:

The effect of paragraph 13 of Schedule 7A to the Town and Country Planning Act 1990 is that planning permission granted for the development of land in England is deemed to have been granted subject to the condition “(the biodiversity gain condition)” that development may not begin unless:

- (a) a Biodiversity Gain Plan has been submitted to the planning authority, and
- (b) the planning authority has approved the plan.

The planning authority, for the purposes of determining whether to approve a Biodiversity Gain Plan if one is required in respect of this permission, would be the person appointed by the Secretary of State.

On the basis of the information provided to determine the application, it is not possible to indicate whether it is considered that this planning permission is one which will require the approval of a biodiversity gain plan before development is begun. This is due to the fact that the development has already commenced and the planned submission of a separate application for the site which may address on-site biodiversity net gain.

Before commencing development, you should consider whether a Biodiversity Gain Plan needs to be submitted and approved. Commencing development which is subject to the biodiversity gain condition without an approved Biodiversity Gain Plan could result in enforcement action for breach of planning control.

- ii. In determining this application the appointed Inspector and Planning Inspectorate, on behalf of the Secretary of State, has worked with the Applicant in a positive and proactive manner. In doing so the Planning Inspectorate gave clear advice of the expectation and requirements for the submission of documents and information, ensured consultation responses were published in good time, and gave clear deadlines for submissions and responses.

- iii. The decision of the appointed person (appointed under s293I TCPA1990, acting on behalf of the Secretary of State) on an application under section(s) 293D and 293H of the TCPA1990 is final; which means there is no right to appeal. An application to the High Court under s288(1) of the Town and Country Planning Act 1990 is the only way in which the decision made on an application under section 293D can be challenged. An application must be made within 6 weeks beginning with the day after the date of the decision
- iv. These notes are provided for guidance only. A person who thinks they may have grounds for challenging this decision is advised to seek legal advice before taking any action. If you require advice on the process for making any challenge you should contact the Administrative Court Office at the Royal Courts of Justice, Strand, London, WC2A 2LL (0207 947 6655) or follow this link: www.gov.uk/courts-tribunals/planning-court

****END OF DECISION NOTICE****
